

Court No. - 37

Case :- WRIT - C No. - 34472 of 2012

Petitioner :- Anup Kumar Kesharwani

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Anju Pandey

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Ram Surat Ram (Maurya),J.

Mahboob Ahmad is appeared for the respondent.

One of the prayer in the writ petition is quash the assessment bill dated 10.8.2011 and the consequent recovery.

Put up this writ petition as fresh before the appropriate Bench hearing writ petition's of the Corporation day after tomorrow i.e. on 25.7.2012.

Order Date :- 23.7.2012

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Court No. - 35

Case :- WRIT - C No. - 34472 of 2012

Petitioner :- Anup Kumar Kesharwani

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Anju Pandey

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

On prayer made by Sri Rajendra Kumar Mishra, learned counsel for the respondent no.4, the case is directed to be put-up as fresh on 24.8.2012 so as to enable him to obtain instructions in the matter.

Order Date :- 22.8.2012

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Court No. - 35

Case :- WRIT - C No. - 34472 of 2012

Petitioner :- Anup Kumar Kesharwani

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- Anju Pandey

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Het Singh Yadav,J.

We have heard Ms. Anju Pandey, learned counsel for the petitioner, the learned Standing Counsel appearing for the respondents no. 1, 2 and 3 and Shri Rajendra Kumar Mishra, learned counsel appearing for the respondent no.4, and perused the record.

It appears that checking was made at the premises of the petitioner on 21.7.2011, and theft of electricity was allegedly detected. The proposed Assessment Bill dated 10.8.2011 making provisional assessment for an amount of Rs. 1,11,915/- was served on the petitioner. Copy of the proposed Assessment Bill has been filed as Annexure No. 5 to the Writ Petition.

It is averred in paragraph 9 of the Writ Petition that the petitioner submitted Objections on 25.8.2011 against the proposed Assessment Bill. Copy of the said Objections has been filed as Annexure No. 6 to the Writ Petition.

It is stated by Ms. Anju Pandey, learned counsel for the petitioner that no Final Assessment Order was ever received by the petitioner nor was the petitioner served with any Demand Notice. Only Citation to Appear dated 18.2.2012 (Annexure No.9 to the Writ Petition) was served on the petitioner.

By the Order dated 22.8.2012, Shri Rajendra Kumar Mishra, learned counsel for the respondent no. 4 was granted time to obtain instructions in the matter.

On the basis of the instructions received by him, Shri Rajendra Kumar Mishra, learned counsel for the respondent no. 4 states that the Objections alleged to have been submitted by the petitioner on 25.8.2011 were never received by the respondent no. 4, and in the circumstances, there was no occasion for passing any order on such Objections.

Shri Rajendra Kumar Mishra, learned counsel for the respondent no. 4 further states that the Final Assessment for an amount of Rs. 91,915/- was sent to the petitioner through Courier by Communication dated 24.9.2011. Shri Rajendra Kumar Mishra, learned counsel for the respondent no. 4 further states that as there is dispute between the parties regarding submission of Objections by the petitioner against the Provisional Assessment and regarding receipt of Final Assessment Order by the petitioner, the petitioner may be directed to submit fresh Objections against the Provisional Assessment within a particular period and the respondent no. 4 may be directed to decide such Objections within a specific period, and the Final

Assessment as communicated by the Communication dated 24.9.2011 as well as the impugned recovery proceedings against the petitioner may be quashed.

Having regard to the nature of controversy involved in the present Writ Petition and keeping in view the statement made by Shri Rajendra Kumar Mishra, learned counsel for the respondent no.4, we are of the view that the interest of justice would be sub-served by disposing the Writ Petition with the following directions:

(1) On or before 17.9.2012, the petitioner will submit his Objections before the respondent no.4 against the Provisional Assessment dated 10.8.2011, alongwith a certified copy of this order.

(2) On receipt of such Objections, the respondent no.4 will give reasonable opportunity of being heard to the petitioner and thereafter pass a reasoned and speaking order by 30.10.2012 in accordance with law including the relevant provisions of the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005.

(3) The order so passed will be served on the petitioner personally and will also be sent to the petitioner by Registered Speed Post (AD) forthwith.

(4) Final Assessment as communicated by the Communication dated 24.9.2011 as well as the Recovery proceedings against the petitioner in respect of the said final Assessment including the Recovery Certificate as also the Citation dated 18.2.2012 (Annexure No.9 to the Writ Petition) stand quashed without prejudice to the right of the respondent no.4 to issue fresh Recovery Certificate keeping in view the order passed on the Objections of the petitioner as mentioned above.

(5) In case the Objections are not filed by the petitioner within the time granted above, this order will stand automatically vacated, and it will be open to the concerned authority to proceed against the petitioner in accordance with law.

The Writ Petition is accordingly disposed of with the above directions.

Order Date :- 24.8.2012

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